

1929 SCC OnLine Lah 228 : AIR 1929 Lah 637 : 1929 Cri LJ 662 :
PLR (1929) 30 Lah 357

Lahore High Court
(BEFORE FFORDE AND HILTON, JJ.)

Bishan Singh ... Convict Appellant;

Versus

Emperor ... Opposite Party.

Criminal Appeal No. 201 of 1929 against order of Sess. Judge,
Ferozepur

Decided on January 21, 1929 and April 16, 1929



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The Judgment of the Court was delivered by

FFORDE, J.:— The appellant has been convicted under S. 302, I.P.C., of having murdered three persons, namely, Uttam Singh, Narain Singh, and Rannaqi, and has been sentenced to death. The admitted facts of the case are that on the evening of 26th October 1928, a number of villagers including the appellant, had gathered together for the purpose of discussing the manner of the distribution of canal water which was to be given to persons who some days before had assisted in repairing a breach in a canal bank. The appellant claimed a share in this distribution but it was objected by the deceased Uttam Singh that as the appellant had done no part of the work he was entitled to no share in the water. Hot dispute seems to have followed, mainly between Uttam Singh and the appellant. From this point the prosecution story varies in some particulars from the defence case. According to nearly all the prosecution witnesses the appellant incensed at the opposition presented to his claim went away, returned with a gun and fired four shots at the assembled villagers who at that time were sitting grouped closely together. These four discharges of the gun resulted in the three persons being killed and seven others injured.

2. The defence is that the appellant apprehending violence from the threatening actions of a certain number of the villagers fired his gun once for the purpose of frightening them and that by mischance the shot lodged in the bodies of the victims causing the three deaths and the other injuries. A further defence is that the appellant at the time

that he fired was in such a mental state from excessive alcohol that he was not capable of forming any intent and that therefore, the intent to kill must be negated.

3. There can, in my judgment, be no doubt at all that the appellant did fire at least twice. One of the prosecution witnesses, whose evidence has been relied upon by Mr. Puri who appears for the appellant, although giving evidence to some extent in support of the appellant's version, has stated that two shots were fired. This witness alleges that he ran away after the first shot but later on heard another report. The rest of the prosecution witnesses are unanimous that four shots were fired. But whether the appellant fired two shots or four is not of very great importance. He is the only man in his village who is licensed to carry a gun and he is apparently accustomed to the use of a shot gun. The shots which he fired were discharged, according to the medical evidence, at a distance of from four or six yards and judging from the fact that of the shots which struck Narain Singh four penetrated the skull and entered the brain, and having regard to the fact that the shots were No. 9, it seems fairly obvious that the gun must have been fired from a fairly close range.

4. The only evidence that the appellant has produced that he was under the influence of drink at the time, is supplied by Kikar Singh, defence witness 1, who has merely made a bald statement that the accused was very drunk at the time. The other defence witness Zora Singh, has merely stated that when he got to the Panchayat, people were telling Uttam Singh not to quarrel with the accused as he was drunk. Mr. Puri has very strongly urged that we should accept the evidence that the appellant was in advanced state of drunkenness and that the presumption of intent to kill when he fired the gun in the manner proved by the prosecution witnesses is rebutted. It has been held by the House of Lords in the *Director of Public Prosecutions v. Beard*¹, that evidence of drunkenness falling short of a proved incapacity in the accused to form the intent necessary to constitute the crime and merely establishing that his mind was affected by drink so that he more readily gave way to some violent passion, does not



rebut the presumption that a man intends the natural consequences of his act.

5. This observation of their Lordships has been followed in more than one case in this Court and must be deemed to be a final statement of the law on this point. I am, however, satisfied that the appellant was

not in such an advanced state of intoxication as not to be fully aware of what he was doing and not to be perfectly cognizant of the probable consequences of his act. In my judgment when firing at the persons in question he must at least be deemed to have intended to cause such injuries as he knew very likely to result in death, and accordingly he must be held guilty of murder within the terms of S. 302, I.P.C. I may add that even if he did not intend to fire at any particular individual at the time but merely fired at the general mass of villagers his act would still come within the category of murder as defined in Cl. 4, S. 300, I.P.C. In firing the gun as he did he must have known that this act was so imminently dangerous that it must in all probability cause death or such bodily injury as was likely to cause death. There can be no doubt that he committed that act without any excuse for incurring the risk of causing death or such injury as was likely to cause death.

6. Mr. Puri has further contended that the case at least falls within Excp. 2 to S. 300, I.P.C. His argument is that the appellant must be held upon the evidence to have acted in good faith in the exercise of the right of private defence and in so doing exceeded the power given to him by law and caused the death of the person against whom he was exercising such right of defence without premeditation and without any intention of doing more harm than was necessary for the purpose of self defence. As against the argument I can find no evidence to indicate that the appellant was in any real apprehension of serious injury at the hands of the villagers on the occasion in question, or at least he could not be said to be in any apprehension of imminent danger to his own life. In my opinion the circumstances which would give rise to the plea of self defence have not only not been established by the appellant but are negatived by all the circumstances of the case. Being in agreement with the conclusion arrived at by the learned Sessions Judge, which is supported by the unanimous view of the four assessors who assisted at the trial, I would dismiss this appeal and confirm the sentence of death.

7. HILTON, J.:— I agree.

M.N. / R.K.

8. *Appeal dismissed.*

¹ [1920] A.C. 479.